THE NATIONAL COMPANY LAW TRIBUNAL

SPECIAL BENCH,

AT NEW DELHI

COMPANY PETITION NO. CAA-27 (PB) 2018

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

In the matter of:

Scheme of Amalgamation

OF

A B MEDICOS PRIVATE LIMITED

...Transferor No. 1 Company

AND

ADITYA MEDICOS PRIVATE LIMITED

...Transferor No. 2 Company

AND

AESTHETICA ENTERPRISES PRIVATE LIMITED

...Transferor No. 3 Company

AND

AKHIL MEDITECH PRIVATE LIMITED

...Transferor No. 4 Company

AND

ASHWIN PHARMACEUTICALS PRIVATE LIMITED

...Transferor No. 5 Company

AND

AVEE MEDI SURGICALS PRIVATE LIMITED

...Transferor No. 6 Company

AND

GLORY LIFESCIENCES PRIVATE LIMITED

...Transferor No. 7 Company

AND

GRACIA HEALTHCARE FOR YOU PRIVATE LIMITED

...Transferor No. 8 Company

AND

HIMANSHU CONSRUCTION PRIVATE LIMITED

...Transferor No. 9 Company

AND

HITESH CONSTRUCTION PRIVATE LIMITED

...Transferor No. 10 Company

AND

KUNAL MEDICARE PRIVATE LIMITED

...Transferor No. 11 Company

AND

MONA INFOTECH PRIVATE LIMITED

...Transferor No. 12 Company

AND

PARADISE REALTECH PRIVATE LIMITED

...Transferor No. 13 Company

AND

PRABHAT HEALTHCARE SERVICES PRIVATE LIMITED

...Transferor No. 14 Company

AND

PURNENDU TRADERS PRIVATE LIMITED

...Transferor No. 15 Company

AND

RADHIKA SURGICAL PRIVATE LIMITED

...Transferor No. 16 Company

AND

REGAL BUILDERS AND PROMOTORS PRIVATE LIMITED

...Transferor No. 17 Company

AND

ROCKLAND HOSPITALS NOIDA PRIVATE LIMITED

...Transferor No. 18 Company

AND

ROCKLAND LABORATORIES PRIVATE LIMITED

...Transferor No. 19 Company

AND

ROCKLAND OIL & GAS PRIVATE LIMITED

...Transferor No. 20 Company

AND

SUKUMAR ENTERPRISES PRIVATE LIMITED

...Transferor No. 21 Company

AND

SUNSKRITI TRADEX PRIVATE LIMITED

...Transferor No. 22 Company

AND

UMESH PHARMACEUTICALS PRIVATE LIMITED

...Transferor No. 23 Company

AND

VAIBHAV INDIA SURGICALS PRIVATE LIMITED

...Transferor No. 24 Company

WITH

ROCKLAND PRIVATE LIMITED

...Transferee Company

Judgment delivered on: ***20.04.2018***

CORAM:

DR. DEEPTI MUKESH, Hon'ble Member (J)

Mr. S. K. MOHAPATRA, Hon'ble Member (T)

For Petitioners: Mr. Praveen K. Mittal, Advocate

ORDER

S.K. MOHAPATRA, MEMBER

This Company Petition jointly filed by the Petitioner Companies has come before us for admission and for fixing a date of hearing of the main Company Petition as well as for a directions in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petition and calling for the objections, if any, to the Scheme of Amalgamation (hereinafter for brevity referred to as "SCHEME") between the Petitioner Companies. From the records, it is seen that the First Motion application seeking direction for convening the meeting of Shareholders and Creditors was filed before this Tribunal vide CA (CAA) No. 98(PB) 2017 and based on such joint application moved under Sections 230-232 of the Companies Act, 2013, the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of all the Petitioner Companies were dispensed with, vide order dated 16.02.2018 passed by this Tribunal.

Thereafter this petition on second motion has come up before us for fixing a date of hearing as well as for other consequential directions in terms of the provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

Rule 16 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 envisages as follows:

> ***"16. Date and notice of hearing.-*** *(1) The Tribunal shall fix a date for the hearing of the petition, and notice of the hearing shall be advertised in the same newspaper in which the notice of the meeting was advertised, or in such other newspaper as the Tribunal may direct, not less than ten days before the date fixed for the hearing.*
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> *(2) The notice of the hearing of the petition shall also be served by the Tribunal to the objectors or to their representatives under sub-section (4) of section 230 of*

the Act and to the Central Government and other authorities who have made representation under rule 8 and have desired to be heard in their representation."

Therefore, in the present second motion petition filed under Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016, the prayer for fixing a date of hearing as well as for other consequential directions is allowed with the following directions: -

(i) Notice of the hearing shall be advertised in the newspapers namely, The "Business Standard" (English, Delhi edition) and "Business Standard" in Vernacular (Hindi, Delhi edition) not less than 10 days before the next date fixed for hearing.

(ii) In addition to the public notice, each of the Petitioners shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern

Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs; (c) the Income Tax Department; (d) Official Liquidator; and to such other Sectoral Regulatory Authorities who are likely to be affected by the Scheme atleast 30 days before the date fixed for hearing of the above Petition. The said authorities are directed to send their representations if any, within 30 days from the date of receipt of such notice as per the provisions of sub-section 5 of Section 230 of the Companies Act, 2013.

(iii) Further, notices shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(iv) All the Petitioners shall at least 7 days before the date of hearing of the Petition file an

affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulatorsas well as to the Objectors, if any.

(v) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may file their objections on or before the date fixed for hearing, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vi) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Companies Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

(vii) The next date of hearing of the Petition shall be on **28.05.2018** for the consideration of the approval of the Scheme of Amalgamation as contemplated between the Petitioner Companies.

Let copy of the order be served to the parties.

Sd/-

(S. K. MOHAPATRA)
Member (T)

-Sd-

(Dr. Deepti Mukesh)
Member (J)

Deepak Kumar